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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2417/15 - 2024 දෙසැම්බර් මස 31 වැනි අඟහරුවාදා - 2024.12.31

No. 2417/15 - TUESDAY, DECEMBER 31, 2024

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PART I : SECTION (I) — GENERAL

Government Notifications

L.D.B 3/2013 (ii)

MERCHANT SHIPPING ACT, No. 52 OF 1971

REGULATIONS made by the Minister of Ports, Shipping and Aviation under section 321 of the Merchant Shipping Act, No. 52 of 1971 read with section 139 of the said Act.

BIMAL NIROSHAN RATHNAYAKE,

Minister of Transport, Highways, Ports and Civil Aviation

Colombo,
30th December 2024.

REGULATIONS

- (1) These regulations may be cited as the Merchant Shipping (Categorisation of Waters) Regulations, No. 2 of 2024.
- (2) These regulations shall apply to all groups of vessels as categorized in regulation 2 of the Merchant Shipping (Vessel Classification and Certification) Regulations, 2024 published in the *Gazette* No. 2417/16 of December 31, 2024.

2. The categorisations define the waters that registered vessels in Sri Lanka shall operate in for the purposes of the application of Merchant Shipping Act, No. 52 of 1971.
3. The waters in which registered vessels in Sri Lanka shall operate are categorised as follows –
 - (a) Seagoing – International;
 - (b) Coastal Waters;
 - (c) Exposed Waters; and
 - (d) Internal Waters.
4. The sea areas as categorised in regulation 3 above are further delineated into areas of operation as specified in Schedules I, II and III hereto:
 - (a) Area Category 0 – Unrestricted Seagoing service;
 - (b) Area Category 0R – Restricted Seagoing service, to sea up to 200 nautical miles from a nominated point of departure;
 - (c) Area Category 1 – At sea up to 150 nautical miles from a safe haven and within 24 nautical miles from the coastline;
 - (d) Area Category 2 – At sea up to 60 nautical miles from a safe haven and within 24 nautical miles from the coastline;
 - (e) Area Category 3 – At sea up to 30 nautical miles from a safe haven and within 24 nautical miles from the coastline;
 - (f) Area Category 4 – At sea up to 20 nautical miles from a nominated point of departure in sea conditions corresponding to the vessels design category, operation within 12 nautical miles from the coastline;
 - (g) Area Category 5 – At sea up to 12 nautical miles from a nominated point of departure in sea conditions corresponding to the vessels design category, operation within 12 nautical miles from the coastline;
 - (h) Area Category 6 – Tidal rivers, estuaries, lagoons, bays and inlets where the significant wave height could not be expected to exceed 2.0m at any time;
 - (i) Area Category 7 – Tidal rivers, estuaries, lagoons, bays, inlets and large deep inland lakes where the significant wave height could not be expected to exceed 1.2 m at any time;
 - (j) Area Category 8 – Wide rivers, canals and small inland lakes where the depth of water is generally 1.5 m or more and where the significant wave height could not be expected to exceed 0.6 m at any time; and
 - (k) Area Category 9 – Narrow rivers and canals where the depth of water is generally less than 1.5 m.

5. In these regulations -

- “baseline” means the low-water line along the coast as marked on officially recognised large-scale charts. Straight baselines are defined connecting fringing islands along a coast, across the mouths of rivers, or across the mouths of bays;
- “boat” means a vessel of less than 24 m in length, or a vessel of less than 150GT. A boat can be a boat, air cushion vehicle, sailing craft, inflatable craft;
- “coastal waters” means all waters on the seaward side of the baseline other than exposed waters and extending up to 24 nautical miles from the baseline;
- “craft” having the same meaning as ship;
- “exposed waters” means all waters on the seaward side of the baseline from which the territorial waters are measured up to 12 nautical miles from the baseline;
- “internal waters” means all water and waterways on the landward side of the baseline from which the territorial waters are measured;
- “length” means either 96 per cent of the total length on a waterline at 85 per cent of the least moulded depth measured from the top of the keel, or the length from the foreside of the stem to the axis of the rudder stock on that waterline, whichever is the greater. In a boat designed with a rake of keel, the waterline on which this length is measured should be parallel to the design waterline;
- “nautical mile” means 1852 m;
- “nominated point of departure” means the designated point of departure of the boat, as specified on the boats Certificate. Where this point lies within the Internal waters, it is to be taken as the seaward boundary of the baseline;
- “non-convention vessels” means vessels for which the Organization Conventions do not apply, and vessels operating solely on domestic voyages for which the Director-General has granted exemptions from the applicable Organization Conventions that apply due to the vessels GT. Where due to the GT of the vessel or area of operation parts of International Maritime Organization Conventions are applicable they would apply unless exemption has been granted by the Director- General of Merchant Shipping;
- “safe haven” means any naturally or artificially sheltered area which may be used as a shelter by a boat under conditions likely to endanger its safety. This may be a ship from which the boat was deployed or an alternative mother ship;
- “seagoing” means all waters on the seaward side of the baseline other than exposed waters and coastal waters;
- “ship” means a waterborne vessel of more than 24m in length, or a vessel of more than 150GT; and
- “vessel” means a ship or boat as defined in these regulations.

SCHEDULE I

(regulation 4)

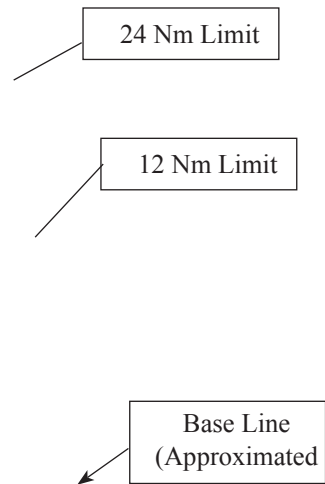
The table below gives the short mapping of the categorisation of waterways against the areas of operation, and the design categories for Non-Convention vessels less than 24m, as specified in the technical codes.

<i>Waterway categorisation</i>	<i>Areas of Operation</i>	<i>Design Category</i>
Seagoing – International (unrestricted)	Area Category 0	A
Seagoing - Restricted	Area Category 0R	A
Coastal Waters	Area Category 1	A
	Area Category 2	B
	Area Category 3	B
Exposed Waters	Area Category 4	C
	Area Category 5	C
Internal Waters	Area Category 6	C
	Area Category 7	C
	Area Category 8	D
	Area Category 9	D

SCHEDULE II

(regulation 4)

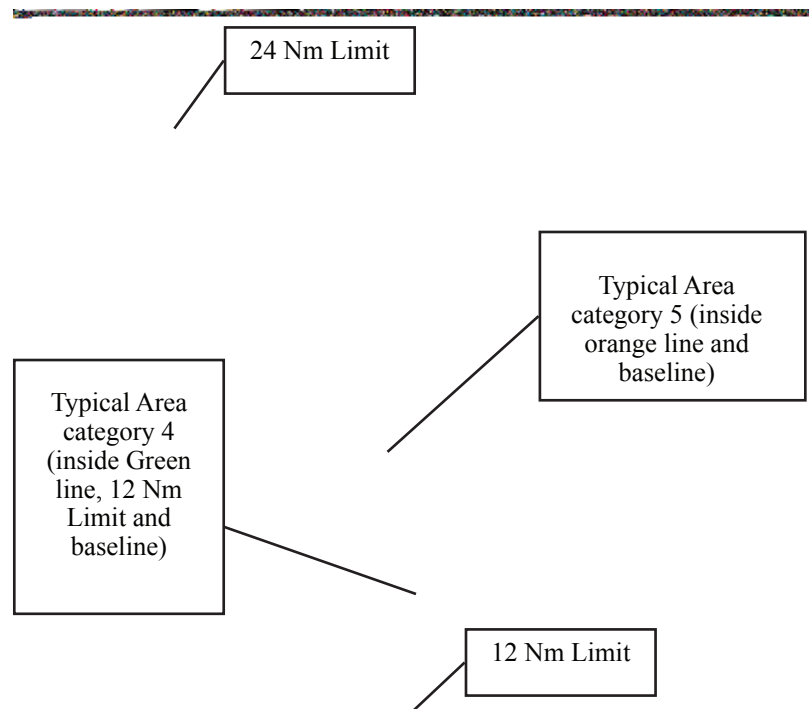
Map of Sri Lanka with Categorisation Illustrated (Baseline Approximated)



SCHEDULE III

(regulation 4)

A typical Area category 4 or 5 is as illustrated below assuming Colombo as the nominated point of departure



Area Categories 1, 2 and 3 would be for voyages inside the 24 Nm limit, but within 150Nm, 60 Nm and 30 Nm respectively from a Safe Haven

Area Category 0R would be for voyages within a 200 NM radius from a nominated point of departure.

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